

Narendra Kumar v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 3 March 2022 · Writ-C No. 1209 of 2022 ·
Writ disposed; bill grievance remitted to opposite party no.3 under clause 6.5

HEADNOTE

A dispute in the nature of correction of an electricity bill is cognizable under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of by permitting the grievance to be presented to opposite party no.3 within two weeks, for a speaking and reasoned order preferably within two weeks thereafter, with coercive action on the impugned recovery certificate stayed until that decision.

FACTUAL SUMMARY

Narendra Kumar filed Writ-C No. 1209 of 2022 in the Lucknow Bench against the State of Uttar Pradesh, through the Secretary of the Energy Department, and others. The petition concerned a dispute in the nature of correction of an electricity bill and an impugned recovery certificate. Counsel for the petitioner sought leave to place that grievance before opposite party no.3. Sri Manish Jauhari accepted notice for opposite parties nos. 2 to 4, and the learned Standing Counsel appeared for the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Bill correction under clause 6.5

HOLDING

A dispute in the nature of correction of bills is provided for, and is cognizable, under clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner may present the electricity-bill grievance to opposite party no.3 within two weeks; if presented, that authority shall consider and decide it expeditiously, preferably within two weeks, by a speaking and reasoned order. Until that decision, coercive measures shall not be adopted on the impugned recovery certificate. The writ petition is disposed of on these terms. ¶ 2-7

PRINCIPLE TAGS

bill-correction-clause-6.5 The Court treated the writ as a dispute in the nature of correction of electricity bills and held that such a dispute is cognizable under clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 2-3

clause-6.5-alternate-remedy-to-writ On the petitioner's request, the writ was disposed of by permitting a representation to opposite party no.3, to be decided by a speaking order, without adjudicating the bill. ¶ 4-5

para-6.5-objection-before-coercive-recovery Coercive measures on the impugned recovery certificate were restrained until opposite party no.3 decided any representation filed within two weeks. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND OF THE IMPUGNED RECOVERY CERTIFICATE

Left to opposite party no.3, if a representation is made within two weeks, to consider and decide by a speaking and reasoned order. ¶ 5-6